



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Charles W. Bloom, AICP
Subject: County Pocket Annexation #2
Date: September 25, 2023

Background:

The item for consideration is a resolution to allow the City to proceed with a City-initiated annexation. Annexation of County pockets is a 2022 City Council priority. A "County pocket" is an area of unincorporated land 100% surrounded by the City of Cheyenne.

The proposed Governing Body review schedule is as follows:

- Introduction and referral September 25, 2023
- Public Services Committee October 3, 2023
- Final consideration October 9, 2023

This annexation is comprised of 50 properties 100% surrounded by the City (See attached map). Of the 50 parcels, 26 are developed with residential uses, one is developed with a commercial use, and others are undeveloped or incorporated into adjacent parcels under similar ownership. The City has maintained contact with the County Planning Office to coordinate any pending permits or development reviews. Currently there are no active permits or development specific to the properties proposed for annexation.

On September 20, 2023, City staff mailed a courtesy notice by first class mail to all landowners included in this annexation area inviting them to a "Question and Answer" on Tuesday, October 3, 2023. A media release was also released on September 22, 2023, identifying properties included in this County pocket annexation.

Annexation also requires establishing a City zone. Staff has created a tentative timeline for the annexation and establishment of City zoning districts for the subject properties. Zone districts will be established on the assigned zoning process of Unified Development Code (UDC) section 2.2.8. In the event of split zoning (where two zone districts divide an existing tract of land), the City intends to apply the more restrictive zone unless extenuating circumstances exist.

Estimated Annexation Timeline*

Monday, September 25, 2023	Resolution certifying compliance introduction
Tuesday, October 3, 2023	Public Services Committee
Monday, October 9, 2023	Final consideration of resolution
Monday, November 6, 2023	Zoning consideration by Planning Commission
Monday, November 13, 2023	Annexation and Zoning ordinances Governing Body public hearing (annexation) and introduction and referral
Tuesday, November 21, 2023	Annexation and Zoning ordinances Public Services Committee
Monday, November 27, 2023	Annexation and Zoning ordinances Governing Body second reading
Tuesday, December 5, 2023	Annexation and Zoning ordinances Public Services Committee
Tuesday, December 11, 2023	Annexation and Zoning ordinances Governing Body third and final Reading
Approximately December 14, 2023	Annexation ordinance and map recording

*Dates subject to change.

Attachments:

1. Resolution

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION CERTIFYING COMPLIANCE WITH WYOMING STATUTE § 15-1-402 FOR THE CITY-INITIATED ANNEXATION OF VARIOUS TRACTS OF LAND COMPLETELY SURROUNDED BY CURRENT CITY LIMITS SITUATE IN NORTHWEST CHEYENNE GENERALLY LOCATED NORTH OF DELL RANGE BOULEVARD AND WEST OF POWDERHOUSE ROAD."

WHEREAS, the City of Cheyenne desires to initiate annexation proceedings for various tracts of land situate in northwest Cheyenne as shown in in Attachment A which is attached hereto and incorporated herein, and more particularly described as follows:

Area #1

A PARCEL OF LAND SITUATE IN A PORTION OF SW¼ NW¼, SECTION 17, T. 14 N., R. 66 W., 6TH P.M., LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHEAST CORNER OF ASPEN CREEK SUBDIVISION; THENCE N. 89°38' 53" W. ALONG THE NORTH LINE OF SAID ASPEN CREEK A DISTANCE OF 912.31 FEET TO THE NORTHWEST CORNER OF SAID ASPEN CREEK; THENCE N. 00°03'27" W. ALONG THE EAST LINE OF LOT 9, BLOCK 5, THE POINTE A DISTANCE OF 230.72 FEET TO A POINTE; THENCE N. 00°01'25" E. ALONG SAID EAST LINE A DISTANCE OF 203.59 FEET TO A POINT ON THE SOUTH LINE OF BLOCK 1, THE POINTE 5TH; THENCE S. 89°37'43" E. ALONG THE SOUTH LINE OF BLOCK 1 AND BLOCK 6 OF THE POINTE 5TH A DISTANCE OF 1161.07 FEET TO A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 41°58'16" W. ALONG SAID WEST LINE A DISTANCE OF 266.69 FEET TO A POINT; THENCE S. 16°42'23" W. ALONG THE SAID WEST LINE A DISTANCE OF 244.42 FEET TO THE POINT OF BEGINNING.
SAID PARCELS CONTAIN 9.78 ACRES MORE OR LESS;

Area #2

PARCELS OF LAND SITUATE IN PORTIONS OF SKYLINE TRACTS, SKYLINE RIDGE SUBDIVISION AND A PARCEL OF LAND SITUATE IN THE E SW OF SECTION 17, 14 SW OF SECTION 17, 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M., AND THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS: , BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

THE W½ AND THE N½ E½ OF TRACT 1, ALL OF TRACTS 11-16, SKYLINE TRACTS, LOTS 1-2, BLOCK 1, SKYLINE RIDGE SUBDIVISION TOGETHER

WITH A PORTION OF UNPLATTED TOGETHER WITH A PORTION OF UNPLATTED A PORTION OF UNPLATTED LAND SITUATE IN THE E SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 SW OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING 14 OF SECTION 17, T. 14 N., R. 66 W., 6TH P.M. BEING MORE PARTICULARLY DESCRIED AS FOLLOWS: FOLLOWS: BEGINNING AT THE SOUTHEAST CORNER OF LOT 1, BLOCK 1, THE POINTE AND A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 16°41'44" W. ALONG THE SAID WEST LINE A DISTANCE OF 580.06 FEET TO A POINT; THENCE S. 16°39'05" W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 156.50 FEET TO A POINT; THENCE S. 32°53'54" W. CONTINUING ALONG THE SAID WEST LINE A DISTANCE OF 601.59 FEET TO A POINT ON THE EAST LINE OF BRIMMER ROAD; THENCE N. 00°21'06" E. ALONG THE SAID WEST LINE OF BRIMMER ROAD A DISTANCE OF 1212.32 FEET TO THE SOUTHWEST CORNER OF SAID LOT 1, BLOCK 1, THE POINTE; THENCE S. 89°48'26" E. ALONG THE SOUTH LONE OF SAID LOT 1, BLOCK 1, THE POINTE A DISTANCE OF 530.67 FEET TO THE POINT OF BEGINNING. TOGETHER WITH: THOSE PORTIONS OF MARSHALL ROAD, SKYLINE DRIVE, BRIMMER ROAD AND MONTCLAIR DRIVE LYING WITH IN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 50.58 ACRES MORE OR LESS;

Area #3

A PARCEL OF LAND SITUATE IN BLOCK 1, BOURNE SUBDIVISION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

ALL OF LOTS 10 & 11, BLOCK 1 AND A PORTION OF A 16' ALLEY ADJACENT TO THE EAST LINES OF SAID LOTS 10 & 11 BEGINNING AT THE EASTERLY EXTENSION OF THE NORTH LINE OF SAID LOT 11 SOUTHERLY TO THE EASTERLY EXTENSION OF THE SOUTH LINE OF LOT 10.

SAID PARCELS CONTAIN 0.43 ACRES OR 18,536 SQUARE FEET MORE OR LESS;

Area #4

A TRACT OF LAND SITUATE IN A PORTION OF NE¼ SE¼, SECTION 13, T. 14 N., R. 67 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE CORNER COMMON TO LOTS 9,10 AND 16, BLOCK 4, BAR X RANCH, 2ND FILING; THENCE N. 89°45'17" E. ALONG THE SOUTH LINE OF SAID LOT 16 A DISTANCE OF 493.57 FEET TO A POINT ON THE WEST LINE OF YELLOWSTONE ROAD; THENCE S. 00°14'19" E. ALONG THE SAID WEST LINE A DISTANCE OF 439.51 FEET TO A POINT NORTHEAST CORNER OF ENCLAVE AT NORTHGATE SUBDIVISION; THENCE S. 89°45'41" W. ALONG THE NORTH LINE OF SAID ENCLAVE AT NORTHGATE SUBDIVISION AND CHEYENNE NORTH 2ND FILING A DISTANCE OF 494.72 FEET TO A POINT; THENCE S. 00°05'18" E. ALONG THE EAST LINE OF SAID NORTH CHEYENNE, 2ND & 3RD FILINGS A DISTANCE OF 439.45 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 4.99 ACRES OR 217,168 SQUARE FEET MORE OR LESS;

Area #5

A PARCEL OF LAND SITUATE IN A PORTION OF TRACT 10, STOREY ACRES, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT A POINT ON THE SOUTH LINE OF SAID TRACT 10 SAID POINT BEARS N. 90°00'00" E. A DISTANCE OF 217.60 FEET FROM THE SOUTHWEST CORNER OF SAID TRACT 10; THENCE N. 00°00' 00' E. A DISTANCE OF 150.05 FEET TO A POINT; THENCE N. 89°57'28" W. A DISTANCE OF 55.60 FEET TO A POINT; THENCE N. 00°00'00" E. A DISTANCE OF 166.70 FEET TO A POINT ON THE SOUTH LINE OF KORNEGAY HOMESITES, 2ND FILING; THENCE S. 89°59'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 358.80 FEET TO A POINT ALSO BEING THE NORTHWEST CORNER OF MILLER ADDITION; THENCE S. 00°00'00" E. ALONG THE WEST LINE OF SAID MILLER ADDITION A DISTANCE OF 136.78 FEET TO A POINT; THENCE N. 89°59'15" W. A DISTANCE OF 140.00 FEET TO A POINT; THENCE S. 00°00'00" E. A DISTANCE OF 179.97 FEET TO A POINT ON THE NORTH LINE OF EAST CARLSON STREET; THENCE N. 90°00'00" W. A DISTANCE OF 163.20 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 1.84 ACRES OR 80,114 SQUARE FEET MORE OR LESS;

Area #6

A PARCEL OF LAND SITUATE IN A PORTION OF THE E½ W½ W½ NE¼ SW¼, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF BLOCK 1, GRAND PRE CIRCLE; THENCE N. 00°03' 00" E. A DISTANCE OF 658.90 FEET TO A POINT ON THE SOUTH LINE OF SMALLEY PARK, SPRING VALLEY ADDITION; THENCE S. 85°52'49" E. A DISTANCE OF 165.59 FEET TO THE SOUTHEAST CORNER OF SAID SMALLEY PARK AND THE NORTHWEST CORNER OF THE PARK PARCEL, REDMOND ADDITION; THENCE S. 00°02'00" W. ALONG THE WEST LINE OF SAID REDMOND ADDITION A DISTANCE OF 658.12 FEET TO A POINT; THENCE S. 89°51'00" W. A DISTANCE OF 165.78 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS;

Area #7

A PARCEL OF LAND SITUATE IN A PORTION OF THE NW¼ SE¼ AND A PORTION OF PRAIRIE AVENUE, SECTION 19, T. 14 N., R. 66 W., 6TH P.M., CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE SOUTHEAST CORNER OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING ALSO BEING A POINT OF THE NORTH LINE OF PRAIRIE AVENUE; THENCE N. 89°57'49" E. ALONG THE SAID NORTH LINE OF PRAIRIE AVENUE A DISTANCE OF 593.17 FEET TO THE SOUTHEAST CORNER OF FLOHR SUBDIVISION; THENCE N. 00°02'15" W. A DISTANCE OF 110.99 FEET TO THE NORTHEAST CORNER OF SAID FLOHR; THENCE S. 89°57'45" W. ALONG THE NORTH LINE OF SAID FLOHR A DISTANCE OF 80.00 FEET TO A POINT; THENCE S. 00°02'15" E. A DISTANCE OF 23.00 FEET TO A POINT; THENCE S. 89°57'45" E. A DISTANCE OF 64.88 FEET TO A POINT ON THE EAST LINE OF MYLAR ADDITION; THENCE N. 00°02'15" W. ALONG THE SAID EAST LINE A DISTANCE OF 12.00 FEET TO THE NORTHEAST CORNER OF SAID MYLAR ADDITION; THENCE S. 89°57'45" W. ALONG THE NORTH LINE OF SAID MYLAR ADDITION A DISTANCE OF 75.00 FEET TO THE NORTHWEST CORNER OF SAID MYLAR ADDITION ALSO BEING A POINT ON THE EAST LINE OF MYLAR ADDITION, 2ND FILING; THENCE N. 00°02'15" W. ALONG THE EAST LINE OF SAID MYLAR ADDITION, 2ND FILING AND DRY CREEK SOUTH, "REFINEMENT A" A DISTANCE OF 150.00 FEET TO THE NORTHEAST CORNER OF LOT 9, OF SAID DRY CREEK SOUTH, "REFINEMENT A" ALSO BEING A POINT ON THE SOUTH LINE OF MYLAR PARK; THENCE N. 89°57'45" E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 82.96 FEET TO A POINT; THENCE S. 49°30'15" E. ALONG THE SAID SOUTH LINE A DISTANCE OF 230.73 FEET TO A POINT; THENCE N. 89°57'12" E. ALONG THE SOUTH LINE OF SAID MYLAR PARK A DISTANCE OF 355.15 FEET TO THE NORTHWEST

CORNER OF LOT 1, BLOCK 1, MYLAR PARK ADDITION, 2ND FILING; THENCE S. 00°16'46" W. ALONG THE WEST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 100.11 FEET TO THE SOUTHWEST CORNER OF SAID ADDITION AND ALSO A POINT ON THE NORTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°44'02" E. ALONG THE SOUTH LINE OF SAID ADDITION A DISTANCE OF 20.00 FEET TO THE SOUTHEAST CORNER OF SAID ADDITION; THENCE S. 00°16' 46" W. ALONG THE SOUTHERLY EXTENSION OF THE EAST LINE OF SAID MYLAR PARK ADDITION, 2ND FILING A DISTANCE OF 60.00 FEET TO A POINT ON THE SOUTH LINE OF SAID PRAIRIE AVENUE; THENCE S. 89°57'49" W. ALONG SAID SOUTH LINE A DISTANCE OF 1005.95 FEET TO THE INTERSECTION OF SOUTHERLY EXTENSION OF THE EAST LINE OF LOT 11, BLOCK 19, INDIAN HILLS, 3RD FILING AND THE SAID SOUTH LINE OF PRAIRIE AVENUE; THENCE N. 00°02'09" E. ALONG THE SAID SOUTHERLY EXTENSION LINE A DISTANCE OF 60.00 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 2.88 ACRES OR 125,222 SQUARE FEET MORE OR LESS;

Area #8

PARCELS OF LAND SITUATE IN BLOCK 14, BLOCK 15, BLOCK 16, BLOCK 17, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND BLOCK 1, NORTH CHEYENNE, 5TH FILING, AND PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, A 16' ALLEY AND ALL OF CHEROKEE STREET, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING, BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

ALL OF LOTS 6-9, BLOCK 14, LOTS 6-9, BLOCK 15, LOTS 1-15, BLOCK 16, LOTS 6-8, BLOCK 17, LOTS 1-3, BLOCK 18, NORTH CHEYENNE, 2ND FILING AND LOTS 1-3, BLOCK 1, NORTH CHEYENNE, 5TH FILING, AND THOSE PORTIONS OF PRAIRIE HILLS DRIVE, SIOUX DRIVE, THAT PORTION OF A 16' ALLEY ADJACENT TO LOTS 6-9, BLOCK 15, CHEYENNE NORTH, 2ND FILING AND LOTS 1-3, BLOCK 1, CHEYENNE NORTH, 5TH FILING AND ALL OF CHEROKEE STREET WITHIN THE BOUNDS OF THIS ANNEXATION BOUNDARY, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING.

SAID PARCELS CONTAIN 9.87 ACRES OR 429,747 SQUARE FEET MORE OR LESS;

Area #9

A PARCEL OF LAND SITUATE IN THE S SE, SECTION 19, T. 14 N., R. 66 W., 12 SE, SECTION 19, T. 14 N., R. 66 W., 14, SECTION 19, T. 14 N., R. 66 W., 6TH P.M.,

CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING BEING MORE BEING
MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE NORTHWEST CORNER OF NIMMO ADDITION AND CONTINUING ALONG THE WEST AND SOUTHERLY BOUNDARY OF SAID NIMMO ADDITION THROUGH THE NEXT 8 COURSES; THENCE S. 00°01' 00" E. ALONG THE WEST LINE A DISTANCE OF 124.00 FEET TO A POINT; THENCE S. 09°29'00" W. A DISTANCE OF 35.80 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE EAST HAVING A RADIUS OF 50.00 FEET A CENTRAL ANGLE OF 120°35'03 (ChB.-S. 09°29'01" W., ChL.-86.86') A DISTANCE OF 105.23 FEET TO A POINT; THENCE S. 50°48'30" E. A DISTANCE OF 540.52 FEET TO A POINT; THENCE S. 89°45'00" E. A DISTANCE OF 168.73 FEET TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 153.53 FEET TO A POINT; THENCE N. 31°26'30" E. A DISTANCE OF 125.00 TO A POINT; THENCE S. 58°33'30" E. A DISTANCE OF 300.00 FEET TO A POINT; THENCE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 230.00 FEET A CENTRAL ANGLE OF 31°29'58 (ChB.-S. 74°18'30" W., ChL.-124.86') A DISTANCE OF 126.45 FEET TO A POINT; THENCE N. 89°56'30" E. A DISTANCE OF 126.93 FEET TO THE SOUTHEAST CORNER OF SAID NIMMO ADDITION ALSO BEING A POINT ON THE WEST LINE OF POWDERHOUSE ROAD; THENCE S. 00°09'36" W. ALONG THE SAID WEST LINE OF A DISTANCE OF 195.90 FEET TO THE INTERSECTION OF THE SAID WEST LINE OF POWDERHOUSE ROAD AND THE NORTH LINE OF DELL RANGE BOULEVARD; THENCE S. 44°41'41" W. ALONG THE SAID NORTH LINE A DISTANCE OF 260.75 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2181.83 FEET A CENTRAL ANGLE OF 02°29'58 (ChB.-N. 72°20'14" W., ChL.-95.17') A DISTANCE OF 95.18 FEET TO A POINT; THENCE S. 18°37'03" W. CONTINUING ALONG THE SAID NORTH LINE A DISTANCE OF 24.92 FEET TO A POINT; THENCE CONTINUING ALONG THE SAID NORTH LINE THROUGH A CURVE CONCAVED TO THE NORTHEAST HAVING A RADIUS OF 2206.83 FEET A CENTRAL ANGLE OF 09°34'35 (ChB.-N. 66°37'13" W., ChL.-368.42') A DISTANCE OF 368.85 FEET TO THE SOUTHEAST CORNER OF LOT 1, BLOCK 3, CHEYENNE AIRPORT ADDITION; THENCE N. 00°12'55" E. ALONG THE WEST LINE OF SAID LOT 1 A DISTANCE OF 310.24 FEET TO THE NORTHEAST CORNER OF SAID LOT 1; THENCE N. 89°52'39" W. A DISTANCE OF 438.66 FEET TO THE NORTHWEST CORNER OF SAID LOT 1 ALSO BEING A POINT OF THE NORTH LINE OF SAID DELL RANGE BOULEVARD; THENCE N. 48°19'00" W. ALONG SAID NORTH LINE A DISTANCE OF 497.28 FEET TO THE SOUTHERLY CORNER OF LOT 1, BLOCK 2, CHEYENNE AIRPORT ADDITION; THENCE S. 89°49'25" E. ALONG THE SOUTH LINE OF SAID LOT 1, BLOCK 2 A DISTANCE OF 150.78 FEET TO A POINT; THENCE S. 89°49'25" E. ALONG THE EAST LINE OF SAID LOT 1, BLOCK 2 A

DISTANCE OF 330.33 FEET TO THE NORTHEAST CORNER OF SAID LOT 1, BLOCK 1 ALSO BEING A POINT ON THE SOUTH LINE OF PRAIRIE AVENUE; THENCE S. 89°38'36" E. ALONG SAID SOUTH LINE A DISTANCE OF 195.17 FEET TO THE POINT OF BEGINNING.

SAID PARCELS CONTAIN 10.32 ACRES MORE OR LESS;

WHEREAS, Wyoming Statute § 15-1-404 specifies the requirements for initiating annexation proceedings by cities and towns and requires that a resolution be adopted certifying compliance with Wyoming Statute § 15-1-402;

WHEREAS, based on reasonable evidence, the Governing Body has determined that the territory to be annexed complies with Wyoming Statute § 15-1-402 and meets the following criteria found in Wyoming Statute § 15-1-402(a):

- (i) The annexation of the area is for the protection of the health, safety and welfare of the persons residing in the area and in the City of Cheyenne;
- (ii) The urban development of the area sought to be annexed would constitute a natural, geographical, economical and social part of the City of Cheyenne;
- (iii) The areas sought to be annexed is a logical and feasible addition to the City of Cheyenne and the extension of basic and other services customarily available to residents of the city or town shall, within reason, be available to the area proposed to be annexed;
- (iv) The area sought to be annexed is contiguous with or adjacent to the City of Cheyenne;
- (v) The Governing Body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to Wyoming Statute § 15-1-410; and,
- (vi) The City of Cheyenne is prepared to, not less than twenty (20) business days prior to the public hearing required by Wyoming Statute § 15-1-405(a), send by certified mail to all landowners and affected public utilities within the territory a summary of the annexation report as required under Wyoming Statute § 15-1-402(c) and notice of the time, date and location of the public hearing required by Wyoming Statute § 15-1-405(a).

WHEREAS, an annexation report has been created by the City of Cheyenne, containing, at a minimum, the required information from Wyo. Stat. § 15-1-402(c);

WHEREAS, The City of Cheyenne shall prepare for each landowner and affected public utility so requesting in writing, the estimated cost of infrastructure improvements required of the landowner and affected public utility related to the annexation pursuant to Wyo. Stat. § 15-1-402(e);

WHEREAS, the annexation of this territory will not create an area which is situated entirely within the boundaries of the City of Cheyenne, following criteria found in Wyoming Statute § 15-1-406(d); and

WHEREAS, the Governing Body finds the territory to be annexed does not meet the criteria specified under Wyoming Statute § 15-1-412, and thus does not require the written consent of the owner of the territory before being annexed by the City of Cheyenne.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the land described above is compliant with Wyo. Stat. §15-1-402, and that the procedures outlined in Wyo. Stat. § 15-1-405 and Wyo. Stat. § 15-1-406 shall hereby be initiated.

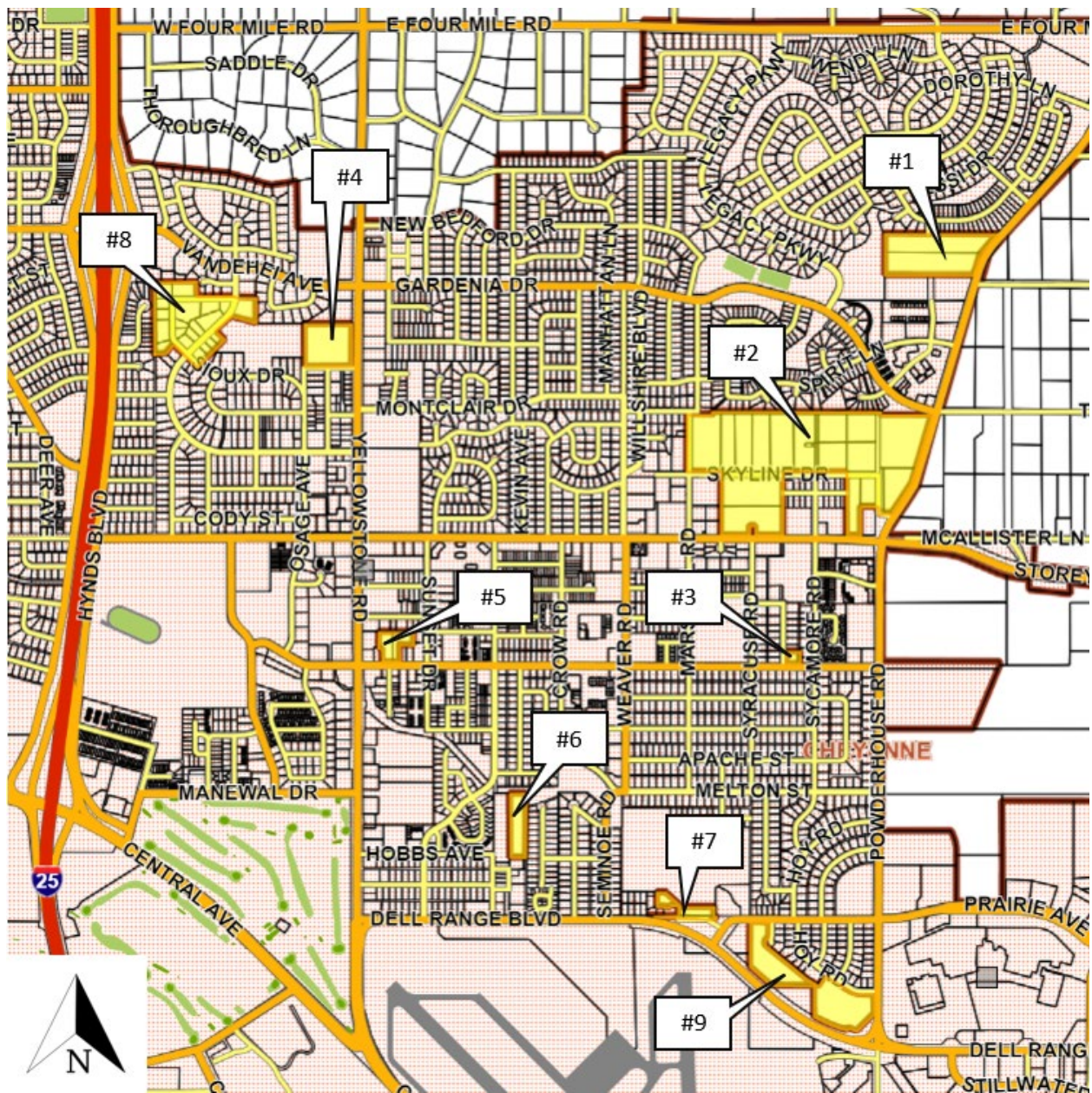
PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk



Attachment A